



Commission decides to refer Slovakia to the Court of Justice of the European Union for failing to deploy the electronic system for Temporary Storage for air transport

Brussels, 1 October 2026

Today, the European Commission decided to refer **Slovakia** ([INFR\(2025\)2021](#)) to the Court of Justice of the European Union for failing to deploy the electronic system for Temporary Storage for air transport containing information on non-Union goods presented to customs and held in temporary storage pending their placement under a customs procedure or re-export.

Under the Union Customs Code (UCC) ([Regulation No. 952/2013](#)) and its Implementing Act ([Regulation No. 2015/2447](#)), Member States were required to build and make the electronic system for Temporary Storage for air transport operational by the applicable deadline, which was extended to 31 December 2023. The system allows the relevant declarations for temporary storage of goods arriving by air to be lodged electronically. A [Temporary Storage Declaration](#) is an electronic document submitted to customs authorities to place non-Union goods in an approved storage facility for a maximum of 90 days while awaiting a final customs procedure or re-export.

This system contributes to a safer and better-regulated internal market by enabling customs authorities to monitor goods from their entry into the EU until they are placed under a customs procedure or re-exported. In addition, the system supports compliance controls since customs can check applicable EU and national prohibitions and restrictions while goods are in temporary storage.

The Commission observed that Slovakia has failed to fulfil its obligations to deploy the electronic system for Temporary Storage for air transport. The Commission sent a [letter of formal notice](#) to Slovakia on 7 May 2025, followed by a [reasoned opinion](#) on 11 December 2025. As Slovakia has not complied with the applicable requirements, the Commission is now referring the case to the Court of Justice.

The Commission's action aims to ensure the timely deployment of the customs electronic systems required under the UCC, which are essential for the effective supervision of goods entering the EU and for the proper functioning of the EU Customs Union.

Background

The UCC provides the legal framework for customs procedures and formalities throughout the EU. A key objective of the UCC is to move towards a fully electronic customs environment. To this end, the UCC requires Member States, in cooperation with the Commission, to develop, maintain and use electronic systems for the exchange and storage of customs information.

Temporary Storage is an important part of the customs process for goods entering the EU. Non-Union goods presented to customs must be covered by a temporary storage declaration containing the information necessary for their supervision. The electronic Temporary Storage system enables these declarations and the related exchange of information to be handled electronically, allowing customs authorities to monitor goods from the moment they enter the EU customs territory until they are placed under a customs procedure or re-exported.

The deployment of the system for Temporary Storage for air transport is governed by the UCC Work Programme, which sets out the timetable for its development and deployment. The timely implementation of the systems is essential for ensuring a harmonised and effective application of EU customs legislation across Member States. For the system for Temporary Storage for air transport, the deployment deadline was extended to 31 December 2023.

For more information

[EU infringement procedure](#)

[Infringement decisions database](#) and [infringements map and graphs](#)

[October 2026 infringement package](#)

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